

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/26/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02133
CASE NAME: FLETCHER TYLER VS. JAMES HARO
*HEARING ON MOTION IN RE: FOR AWARD OF COSTS AND EXPERT FEES AS PREVAILING PARTIES
FILED BY: TYLER, FLETCHER WILLIAM
TENTATIVE RULING:

After judgment was entered in this case, Plaintiffs Fletcher Tyler et al. filed a Motion for Award of Costs and Expert Fees as Prevailing Parties. Defendant Doris Haro filed an opposition and Plaintiff filed a reply. For the reasons stated below, Plaintiff's motion is **granted**.

Since judgment was entered in this case, one of the Defendants, James Haro, passed away. The only remaining Defendant is Doris Haro. On May 8, 2025, Plaintiffs conveyed an offer pursuant to Code of Civil Procedure section 998 for \$298,000. Defendant Haro never responded, which acted as a

rejection of the offer. At trial, Plaintiffs were awarded \$335,000 jointly and severally against James Haro and Doris Haro. Plaintiffs request costs as a prevailing party pursuant to Code of Civil Procedure sections 1032 and 1033.5, and their post-offer expert fees pursuant to section 997.

Expert Fees

Pursuant to Code of Civil Procedure section 998(d), “If an offer made by a plaintiff is not accepted and the defendant fails to obtain a more favorable judgment or award in any action . . . , the court . . . , in its discretion, may require the defendant to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in . . . trial . . . , or during trial . . . , of the case by the plaintiff, in addition to plaintiff’s costs.” Defendant argues that it is not clear that Plaintiffs obtained a “more favorable judgment” because the offer was made to Doris Haro individually and the judgment was joint and severally against her and James Haro. While Plaintiffs pretend not to understand this argument, it is clear to the Court that Ms. Haro is arguing that joint and several liability is complex enough as to make it not clear that \$335,000 jointly and severally against her and her since-deceased husband is greater than \$298,000 against her alone. What is *not* clear to the Court is whether there any support for Defendant’s argument. No cases were cited, and the common sense conclusion of a joint and several liability is that Ms. Haro is responsible for the whole amount. There was a moment in time when it was possible that she would have to share this liability with her husband, but given that they were married until his death, the Court is unaware any scenario where she would end off better than what was proposed by the section 998 offer.

Plaintiffs seek expert fees in the amount of \$1,900. Defendant first argues that Plaintiffs failed to prove that the fees were incurred after the section 998 offer. While Exhibit 2 of the Gerald Beaudoin declaration does include an invoice with a lump-sum charge, the declaration itself notes that the expert did not begin work until “late May of 2025.” This is sufficient evidence that the work post-dated the offer.

Defendant next argues that, because the expert’s work addressed appraisal and valuation of the property, and the “core issue in this litigation was the legitimacy of an assignment of a deed of trust for the Montgomery Property,” the expert’s work was not “reasonably necessary.” Although the Court would have expected a more substantive response to this argument Plaintiffs are correct that when a statute allows a category of recoverable costs, “the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) The Court finds that the burden has not been met.

Costs as a Prevailing Party

Plaintiffs additionally seek deposition, transcript, service of process, subpoena, and efilng costs. All of these costs are supported in the Declaration of Gerald Deaudoin and, contrary to Defendant’s arguments, contain specificity as to time and nature in the bills themselves. The Court is confused as to the argument that there was no support that the depositions were necessary, given in particular that one of the depositions was of Defendant Haro herself. All costs in the application will be awarded.

Ruling

For the reasons set forth above and in Plaintiffs' moving papers, the requested costs will be awarded.

2. 9:00 AM CASE NUMBER: C24-01788
CASE NAME: HICHAM MESNAOUI VS. LAKERIDGE ATHLETIC CLUB
HEARING ON SUMMARY MOTION JUDGEMENT
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, for summary adjudication filed by defendants Lakeridge Athletic Club and William Worthington. For the reasons set forth, the Court rules as follows: (a) motion for summary judgment – **denied**; (b) motion for summary adjudication of Issues 1 and 2 – **granted**; and (c) motion for summary adjudication of Issue 3 – **denied**.

Background

Plaintiff Hicham Mesnaoui alleges on July 6, 2023, he was injured by defendant Adam Morgenthaler during a judo class Mesnaoui and Morgenthaler were participating in at the Lakeridge Athletic Club. (Compl. ¶ 6.) He alleges that after Morgenthaler injured him, the instructor defendant William Worthington, erroneously named "Billy Vidal" in the complaint, was a staff member of Lakeridge and caused him more injury. (Compl. ¶ 6.)

Plaintiff sued Lakeridge, Morgenthaler, and Worthington for premises liability, and Lakeridge alone for negligence. Plaintiff subsequently settled with defendant Morgenthaler for \$30,000, and on motion, Morgenthaler obtained a good faith determination regarding that settlement under Code of Civil Procedure section 877.6. Lakeridge and Worthington (for convenience, collectively sometimes referred to as the "Lakeridge Defendants") have filed a motion for summary judgment, or alternatively, summary adjudication. Plaintiff opposes the motion.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.] (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also*